IDEAS

What Bob Dole Hath Wrought

Perceived illegitimacy is now an American tradition.

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David Greenberg
Professor of History and Media Studies at Rutgers University

Al Gore and George W. Bush supporters hold signs outside the U.S. Supreme Court on December 11, 2000. (MARK WILSON / NEWSMAKERS / GETTY)

President Donald Trump's unwillingness to concede the election is bad news for many reasons. One is that it all but guarantees that some portion of his followers will refuse to recognize the Biden administration's legitimacy—just as some people did not recognize the Trump administration's legitimacy, or the Obama administration's legitimacy before it. President-elect Joe Biden is promising a return to normalcy, but the perception by some substantial part of the electorate that the American president is illegitimate is no longer an aberration in American politics. It is normal.

This may have all started with Bob Dole. Although people tend to think of the former Senate majority leader, now 97 years old, as an old-school Republican of the pre-scorched-earth era, he was as early as 1993 a chief source of chaos and destabilization. When Bill Clinton routed the incumbent George H. W. Bush in the 1992 presidential election—bringing the Democrats to the White House for the first time in 12 years—

the ornery Dole was having none of it. Many Republicans were touting the threadbare claim that Clinton had won the presidency only because the third-party candidacy of the Texas billionaire Ross Perot siphoned votes away from Bush; in fact, Perot's voters' second choices broke almost evenly between the two candidates.

But Dole went even further than many of his party mates (including the defeated Bush). He trumpeted the specious notion that because Clinton netted only 43 percent of the popular vote in the three-way race, he—Dole, the ranking Republican in the federal government—was the rightful representative of the other 57 percent. Other Republicans followed his lead, treating Clinton as usurper. And when Dole tried to unseat Clinton in 1996, the Republican asserted that the news media were trying to "steal" the election from him.

Dole's attitude stemmed from a conviction that had taken hold of Republicans during the Reagan-Bush years. Ronald Reagan's two landslides, followed by Bush's decisive defeat of the Democrat Michael S. Dukakis in 1988, had fostered an assumption that Republicans were somehow the "majority party" and had a lock on the White House. When Bill Clinton debated whether to run for president in 1992, Hillary Clinton warned him that the Republicans considered themselves "anointed," almost entitled by natural law to win the presidency every time. Clinton's victory did not dispel the resentment: Throughout Clinton's presidency, Republicans branded him as "illegitimate" and hounded him with bullshit investigations, over trivial incidents now rightly forgotten. These culminated, of course, in their drive to impeach him for lying about his extramarital affair.

The 2000 election between Vice President Al Gore and George W. Bush also led to allegations of illegitimacy—this time against the Republican victor. Excruciatingly close on Election Night, the outcome came down to Florida, where voters more or less deadlocked. After a notoriously drawn-out legal fight, the Supreme Court decreed that Florida had to stop counting its votes mid-process, thus preserving a slender and tentative lead for Bush (537 out of 6 million ballots cast). Three factors in particular rendered that result questionable. First was the surmise, later borne out, that a true measure of Florida voters' preferences may have shown Gore to be the rightful winner; the truncated count, along with a probably illegal ballot design, ensured that those preferences weren't properly registered. Second, Republicans had resorted to mob violence to shut down one of the recounts. Finally, the Supreme Court ruling was blatantly partisan, recognized by scholars as a shoddy piece of argumentation, approaching outright sophistry. Many Democrats believed quite reasonably that the election had been, if not stolen (because the Supreme Court's involvement made the outcome legal by definition), then at least expropriated.

After September 11, Democrats' arguments that the younger Bush was not a legitimate president faded. But the disaster of the Iraq War revived anti-Bush feeling. In 2004, he managed to eke out a second election victory, prevailing, again, by just one state—in this case Ohio. This time, a handful of conspiracist critics claimed, falsely, that Ohio had been "stolen," much as Florida had been in 2000, and although these theories never gained extensive support, they reflected a more widespread implacability among Democrats. Democrats kept Bush on the ropes for most of his second term. Congressional leaders resisted calls from their base to impeach Bush, but his approval ratings plunged to levels equal to those of repudiated Presidents Richard Nixon and Jimmy Carter.

Barack Obama's election in 2008, though clear-cut, brought no respite from charges of presidential illegitimacy. The Constitution stipulates that the president must be a "natural-born" (as opposed to a "naturalized") citizen, and Obama's opponents insisted that he wasn't one. Starting during his campaign, they either promoted erroneous claims that he was actually born in Kenya (his father's homeland) or spun out baroque theories about why his Hawaii birth in 1961 did not confer citizenship. Some of these conspiracy theorists trafficked in crude racism; others blended the citizenship issue with more fantasies—such as that Obama was Muslim or "an Arab"—that adumbrated an image of Obama as alien to America and its values. Eventually, Donald Trump took up these falsehoods, parlaying the ensuing publicity into a platform for his own 2016 presidential campaign.

Russian interference in the 2016 campaign provided grounds for deeming Trump illegitimate as well. (Hillary Clinton, Jimmy Carter, and John Lewis all used the I-word.) These judgments didn't come out of nowhere. Russia did surreptitiously try to help Trump win—including by organizing the hacking and leaking of emails of the Democratic National Committee and of Clinton campaign chairman John Podesta. Trump officials did lie about their contacts with the Russians, raising suspicions further. Moreover, the question of how many voters were influenced by the 2016 propaganda operation is inherently unknowable. Many Democrats, however, went way overboard, putting stock in the so-called Steele dossier, including absurd stories about urolagnia. Others, baselessly, deemed Trump a Russian "asset," a kind of Manchurian candidate installed by Moscow, while still others wrongly suggested that Russia had actually succeeded in hacking voting machines and changing vote totals.

Now, as predictable as the tides, Trump—by inaccurately claiming widespread fraud in this year's election—is priming his followers to deem Biden's presidency illegitimate too. Newt Gingrich is attributing Biden's victory to "thieves." Pro-Trump websites such as *American Greatness* are promoting conspiracy theories. With Republicans likely to retain

control of the Senate, politically motivated investigations of the Biden administration will probably commence shortly after the inauguration.

Is it just a coincidence that five presidents in a row now will be deemed illegitimate by the opposition? Or could the reasons lie not only in the disparate particulars of each election—a 5–4 Supreme Court ruling, ambiguous laws about citizenship, Russian mischief, a pandemic-inspired haul of absentee ballots—but in a broader truth about our political culture today?

By now, everyone knows that American politics since the 1990s have polarized. Trump's election made polarization topic A after 2016, but the trend has been evident since the advent of "red" and "blue" states as tools of analysis following the 2000 Florida recount. For more than two decades, Americans have been sorting themselves into communities of the like-minded, online and in real life. Liberals have left the Republican Party and conservatives have abandoned the Democrats, rendering the parties more ideologically homogeneous. Ticket-splitting—casting votes for candidates of different parties for different offices—which was on the rise for the second half of the 20th century, has declined in the 21st. The number of senators willing to confirm a Supreme Court nominee chosen by a president of the other party has also plummeted. Social media and partisan media have created information silos that reinforce partisan tendencies.

One idea developed by political scientists, but not extensively discussed by journalists, is that of "negative partisanship" or "affective polarization" (or, sometimes, "negative affective polarization"). In English, this means not that the parties have necessarily become more extreme in their politics, but that Americans in one political camp *regard* the opposing camp (hence, "negative") as increasingly extreme, and with growing hostility (hence, "affective"). When voters exhibit negative affective polarization, they are more inclined not just to disagree with members of the other party or camp (polarization), but also to consider their opponents immoral, hateful, or dishonest—or illegitimate. This spills over into personal relations too. In one much-cited finding, Americans used to object to the prospect of their children marrying outside their race, but cared little if their children wedded someone of a different political party. Today, the reverse holds: Few Americans see anything wrong with interracial unions, but marrying across party lines invites protest.

Biden seems to recognize that achieving anything as president will depend on his overcoming—or at least starting to undo, even just a bit—the toxic effects of affective polarization. That is why he holds out hope of working with Mitch McConnell, despite the Senate majority leader's obstructionism under Obama. That's also why Biden said on Saturday night, acknowledging his election victory, "To make progress, we have to stop treating our opponents as our enemies. They are not our enemies. They are

Americans." His success requires that we treat these words not as rhetoric or boilerplate, but as the core of a very plausible analysis—and an earnestly hopeful vision of a better way forward.

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